

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

Mr. Justice Jamal Khan Mandokhail
Mr. Justice Shahid Waheed
Mr. Justice Irfan Saadat Khan

Crl.P.L.A. NO. 215 OF 2026

Against the order dated 28.01.2026 passed by the Lahore High Court, Lahore in Crl. Misc.No.74824-B of 2025

Faryad Ahmed	Versus	...Petitioner(s)
The State through Prosecutor General, Punjab and another		...Respondent(s)
For the Petitioner(s)	:	Ch. Muhammad Ashraf Jalal, ASC Syed Rifaqat Hussain Shah, AOR
For the State	:	Mr. Irfan Zia, Deputy Prosecutor, Pb. Mr. Shujat Hussain, S.I.
For the Complainant	:	Ch. Muhammad Ishtiaq, ASC (video link, Lahore)
Date of Hearing	:	25.02.2026

ORDER

Irfan Saadat Khan, J.- Faryad Ahmed, petitioner-accused, has filed the instant bail before arrest application seeking bail in respect of the FIR bearing No. 697/2025, registered on 15.11.2025 at 03:30 p.m. at Police Station Saddar Shakargarh, District Narowal, for offences under Sections 322, 337-G, and 279 of the Pakistan Penal Code (hereinafter referred to as '**PPC**'). His previous pre-arrest bail applications were dismissed by the Additional Sessions Judge, Shakargarh, vide order dated 09.12.2025, and by the High Court in Crl. Misc. 74824-B of 2025 dated 28.01.2026.

2. Briefly stated, the facts of the case are that, as per the FIR, Ali Shair, Asad and Muhammad Wahid (son of Asad, aged 4/5 years) were going on a motorcycle from Chamahal to their village, Mouza Nagroota Ansarian. However, when they reached near Chamahal Mor, near the

petrol pump, an unknown driver, driving a Mazda Coaster from the opposite side in a rash and negligent manner, hit the motorcycle. Due to this, Ali Shair, Asad, and his son Muhammad Wahid got seriously injured and were then brought to THQ Hospital, Shakargarh. Muhammad Wahid succumbed to his injuries in the hospital, whereas the other two injured persons, namely Ali Sher and Asad, were referred to DHQ Hospital, Narowal. Subsequently, it came on the record that these two persons also succumbed to their injuries. Thereafter, FIR was registered against the unknown driver for rash and negligent driving and hitting the motorcycle, due to which the death of three persons occurred.

3. Bail application was filed by the petitioner before the Additional Sessions Judge, Shakargarh, who, as stated above, initially granted ad-interim bail vide order dated 17.11.2025, but subsequently, vide order dated 09.12.2025, recalled the same. Against this order, an appeal was filed before the High Court, in the above-referred Criminal Misc. The High Court also dismissed the said application, which prompted the petitioner to file the present pre-arrest bail application.

4. Mr. Muhammad Ashraf Jalal, learned ASC has appeared on behalf of the petitioner and stated that the name of Faryad Ahmed does not appear in the FIR. He next stated that the complainant has failed to disclose whether he was present at the time of the fateful incident or not. Learned counsel further stated that the offence under Section 322 of the PPC, is only punishable with *diyat*. He stated that all material facts of the case are already before the investigation officer and that no further inquiry or investigation is required in the instant matter by the police. He stated that the petitioner apprehends humiliation at the hands of the police. He next stated that, though it is alleged that the petitioner was having a fake driving license which,

in his, view is a separate matter and even if it is assumed that the petitioner was having a fake driving license, the said offence is bailable. He next stated that since the petitioner is no more required for the inquiry/investigation hence bail before arrest may kindly be granted to the petitioner-accused.

5. Mr. Irfan Zia, Deputy Prosecutor General, (DPG) and Shujat Hussain, SI, have appeared on behalf of the State and have opposed the instant bail application. During the course of the arguments, a categorical question was asked from the SI as to what further investigation he requires from the petitioner, to which no plausible reply was furnished; rather, he conceded that the petitioner is no more required for further inquiry or investigation.

6. Ch. Muhammad Ishtiaq, learned ASC, has appeared via video-link from Lahore, on behalf of the complainant and has also opposed the bail on the ground that three innocent persons have expired in the fateful incident due to rash and negligent driving of the petitioner who was having a fake driving license also which factors entail that bail before arrest may not be granted to him. However, he could not controvert the fact that, even if the present pre-arrest bail application is rejected, what fruitful purpose would be achieved in extracting more facts or making further inquiry or investigation from him.

7. We have heard the learned counsel for the petitioner, counsel for the complainant, as well as the State counsel, and have also perused the record with their able assistance.

8. No doubt, in this fateful incident, three innocent persons have expired however, the fact remains that the petitioner is no more required for extracting some more facts or making further inquiry from him, as duly conceded by the I.O of the case. The offence under Section

322 of the PPC, entails *diyat* only, whereas the offence under Section 279 of the PPC, is a bailable offence. If all these factors are considered in juxtaposition, it would reveal that the petitioner is entitled for the grant of pre-arrest bail. We, therefore, convert the instant petition into an appeal and allow the same, subject to the petitioner furnishing bail bonds in the sum of Rs.100,000/- with one surety in like amount to the satisfaction of the concerned trial court.

9. Needless to state that the observations made in this bail before arrest order are only tentative in nature and shall not prejudice the case of either party before the trial court.

10. These are the reasons for our short order dated 25.02.2026, which is reproduced hereunder:

“For reasons to be recorded later, this petition filed by the petitioner seeking bail before arrest is converted into an appeal and allowed. The appellant is granted bail before arrest, subject to furnishing his bail bonds in the sum of Rs.100,000/- with one surety in the like amount to the satisfaction of the Trial Court concerned.”

Islamabad
25.02.2026
‘NOT APPROVED FOR REPORTING’
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